

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

JOSEPH MCDOUGAL,

Plaintiff,

- against -

THE CITY OF NEW YORK; OFFICER DONALD SEHL
(Shield #02712) of the 40th Precinct; OFFICER
ROSTISLAV KIPERVASER (Shield #8614) of the 40th
Precinct; NYPD OFFICERS "JOHN DOE 1-2",
Individually and in their official capacity, (the names
John Doe being fictitious, as the true name and number
are presently unknown),

Defendants.

-----X

Index No.:

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Bronx County and is against
the City of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
October 28, 2018

Yours etc.

Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorney for Plaintiff

JOSEPH MCDOUGAL

233 Broadway, Suite 2348

New York, NY 10279

212-226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

OFFICER DONALD SEHL (Shield #02712)
40nd Precinct, New York City Police Department
257 Alexander Ave.
Bronx, NY, 10454-1133

OFFICER DONALD SEHL (Shield #02712)
40nd Precinct, New York City Police Department
257 Alexander Ave.
Bronx, NY, 10454-1133

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSEPH MCDOUGAL,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK; OFFICER DONALD SEHL
(Shield #02712) of the 40th Precinct; OFFICER
ROSTISLAV KIPERVASER (Shield #8614) of the 40th
Precinct; NYPD OFFICERS "JOHN DOE 1-2",
Individually and in their official capacity, (the names
John Doe being fictitious, as the true name and number
are presently unknown),

Defendants.

-----X

Plaintiff, by his attorneys, THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. That on October 28, 2015, and at all times herein mentioned, Defendant the **CITY OF NEW YORK** was, and still is, a municipal corporation.
2. That on February 28, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK**, and that, thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
3. That this action is commenced within a year and 90 days from the dismissal of all criminal charges against the plaintiff..

4. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the employer of all individually named defendants, including Defendants SEHL and KIPERVASER.

5. That on October 28, 2015, the Plaintiff **JOSEPH MCDOUGAL** had not committed any crime.

6. That at approximately 5 o'clock a.m. on October 28, 2015, a team of officers including Defendants SEHL and KIPERVASER entered 995 East 173rd Street, Apt. D, Bronx, New York.

7. At this place and time, Plaintiff Joseph McDougal was arrested and placed in handcuffs.

8. Despite offering no resistance, Plaintiff was assaulted and handcuffed so tightly as to induce severe pain to his right wrist. Plaintiff suffered injuries his right wrist, to the ribs on his right side, and a hematoma to his right flank after being struck with a riot shield.

9. Defendant SEHL then executed the criminal complaint under docket number 2015BX051559, charging Plaintiff with violating NYC Administrative Code §10-131—Possession of Ammunition and NY PL §221.05—Unlawful Possession of Marijuana (a violation, not a crime).

10. These allegations against claimant were false and were fabricated in an attempt to intimidate and falsely convict him.

11. Defendant SEHL also executed a criminal complaint under docket number 2015BX051562, charging claimant with violating NY PL §220.03—Criminal possession of a controlled substance in the 7th degree.

12. These allegations against claimant were also false and were fabricated in an attempt to intimidate and falsely convict him.

13. Plaintiff was taken to Bronx Central Booking, finger printed, and photographed.
14. Plaintiff's total time of incarceration before arraignment was approximately 24 hours.
15. Thereafter, claimant was forced to return to court every month over the next two years in order to fight these false allegations.
16. The charges under docket number 2015BX051559 were dismissed on December 1, 2017.
17. The charges under docket number 2015BX051562 were dismissed on January 29, 2018.
18. Plaintiff was maliciously prosecuted by and at the direction of Detective SEHL and KIPERVASER, Detective "John Does 1-2," as well as other agents, servants and/or employees of the City of New York, including but not limited to, upon information and belief, agents employed by the New York City Police Department and officers affiliated with the 40th Precinct of the City of New York.
19. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.
20. No acts on the part of the Plaintiff **JOSEPH MCDOUGAL**, contributed to the occurrence alleged herein in any manner whatsoever.
21. As a result of the intentional, reckless and negligent acts of the defendants, plaintiff suffered loss of liberty of approximately 24 hours.

22. As a result of these charges initiated by defendants, Plaintiff was forced to return to court on at least 25 occasions.
23. Plaintiff sustained injuries to his right wrist, the ribs on the right side, and right flank (hematoma). Plaintiff further suffered severe anxiety, humiliation, and embarrassment, and apprehension, fear and distrust of the police.
24. Plaintiff further suffered emotional and psychological trauma, violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.
25. That by reason of the foregoing, Plaintiff **JOSEPH MCDOUGAL** has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. §1983

26. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
27. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
28. As a result of the aforesaid conduct by defendants SEHL and KIPERVASER and JOHN DOES 1-2, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.
29. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights,

emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

30. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF:
MALICIOUS PROSECUTION UNDER STATE and FEDERAL LAW

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

28. At the aforementioned times and locations, was detained and held under the imprisonment and control of the defendants and other unidentified officers of the NYPD present on the scene without probable cause.

29. Defendants commenced the criminal action against plaintiff in the absence of any probable cause that a crime had been committed by Plaintiff.

30. Defendants commenced this criminal action out of malice.

31. The criminal action against plaintiff has terminated in his favor.

32. At all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

33. Plaintiff was conscious of the confinement.

34. As a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

35. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.
36. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.
37. The City of New York remains liable for the conduct of its employees and agents under the doctrine of *respondeat superior*.

THIRD CLAIM FOR RELIEF:
NEGLIGENCE

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
32. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.
33. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION,

SUPERVISION and TRAINING of SEHL, KIPERVASER and JOHN DOES 1-2

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

36. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FIFTH CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER FEDERAL LAW

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. In detaining plaintiff, defendants used force.

39. The force used was unreasonable and excessive.

40. Plaintiff was harmed as a result of the use of this force.

41. Defendants' use of force was a substantial factor in causing the harm to plaintiff.

42. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

43. As a result of the defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated:

New York, NY
October 28, 2018

Yours, etc.

The Law Office of Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorney for Plaintiff(s)

JOSEPH MCDOUGAL

233 Broadway, Suite 2348

New York, NY 10013

212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiff, **JOSEPH MCDOUGAL**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, NY
 October 28, 2018

_____/s/_____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff